

## 24SMCV01971 24SMCV01971

County: los-angeles

Division: Civil Law and Motion

Department: 205

Hearing date: 2026-08-18

Source URL: [https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept\\_date=BH%20%2C205%2C08%2F18%2F2026](https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=BH%20%2C205%2C08%2F18%2F2026)

Source SHA-256: 82a54abe65257bab22d936ab7b4f167982df6083c9db58ad33a524e679847aca

Case Number: 24SMCV01971 Hearing Date: August 18, 2026 Dept: 205

Superior Court of California

County of Los Angeles – West District

Beverly Hills Courthouse / Department 205

RON R. GOLDIE, et al.,

Plaintiff,

v.

BEST DOMESTIC SERVICES, LLC, et al.,

Defendants.

Case No.: 26SMCV01971

Hearing Date: August 18, 2026

[TENTATIVE] order RE:

plaintiffs' motion to

strike answer of defendant

BACKGROUND

Plaintiffs Ron and Ellie Goldie used the services of Defendant Best Domestic Services, LLC, a Beverly Hills domestic staffing agency, to find a housekeeper. Defendant touts itself as "largest domestic staffing agency in the country" and promises prospective clients that each candidate is "carefully screened" using the "most accurate and advanced screening technology."

Defendant placed Rosie Peneda as a housekeeper in Plaintiffs' home. Defendant represented it had worked with Peneda for years and had thoroughly vetted her. Plaintiffs paid Defendant a substantial placement fee of \$7,000 for Peneda's hiring and then began working with Peneda directly. Because of Defendant's assurances, and after Peneda passed a trial run, the Goldies entrusted her with the key to their home and the password for their security system.

In November 2025, Peneda stole approximately \$250,000 of rare jewelry from Plaintiffs and absconded. A private investigation paid for by Plaintiffs confirmed that Defendant had misrepresented its vetting process. Defendant never verified Peneda's resume, never performed a background check on her, and never even confirmed it had the correct address on file for her.

This action ensued. The operative complaint alleges claims for (1) fraud/intentional misrepresentation, (2) negligent misrepresentation, (3) negligence, (4) false advertising, (5) unfair competition, and (6) breach of the implied covenant of good faith and fair dealing.

This hearing is on Plaintiffs' motion to strike Defendant's answer. Plaintiffs argue that Defendant was suspended by the California Franchise Tax Board at the time the Answer was filed, and because it is a suspended corporation, it lacks the legal capacity to prosecute or defend an action, and its answer should be stricken. Plaintiffs also ask the Court to enter default against Defendant. There was no opposition filed as of the posting of this tentative ruling.

#### REQUEST FOR JUDICIAL NOTICE

Plaintiffs seek judicial notice of the search results for "Best Domestic Services, LLC" on the California Secretary of State's website (<https://bizfileonline.sos.ca.gov/search/business>) which shows that Defendant's current status is "Suspended." The Court grants the request pursuant to Evid. Code §§ 452(b)-(c), (g)-(h), 453. Business searches on the California Secretary of State website are judicially noticeable. (See *City of Alameda v. Sheehan* (2024) 105 Cal.App.5th 68, 82, fn. 7 [granting request for judicial notice as to documents from the California Secretary of State website].)

#### LEGAL STANDARD

The court may, upon motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc. § 436, subd. (a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc. § 436, subd. (b).) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc. § 437.)

#### MEET AND CONFER

Code Civ. Proc. § 435.5 requires that before the filing of a motion to strike, the moving party "shall meet and confer in person or by telephone" with the party who filed the pleading that is subject to the motion to strike for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the motion to strike. (Code Civ. Proc. § 435.5(a).) The parties are to meet and confer at least five days before the date the responsive pleading is due. (Code Civ. Proc. § 435.5(a)(2).) Thereafter, the moving party shall file and serve a declaration detailing their meet and confer efforts. (Code Civ. Proc. § 435.5(a)(3).) Plaintiffs submit the Declaration of Shauna E. Woods who attests that the parties engaged in a telephonic meet and confer on June 29, 2026. Accordingly, Plaintiffs have satisfied their meet and confer obligations.

## DISCUSSION

California Code of Civil Procedure section 436 authorizes this Court to strike pleadings “not drawn or filed in conformity with the laws of this state.” Plaintiff argues that the Answer is not filed in conformity with California’s revenue and tax laws. The Court agrees.

Revenue and Taxation Code section 23301 provides that: “The corporate powers, rights, and privileges of a domestic taxpayer may be suspended for failure to pay certain taxes and penalties.” A corporation which has been suspended by the Franchise Tax Board is without legal capacity to prosecute or to defend a civil action during the period of suspension. (Elec. Equip. Express, Inc. v. Donald H. Seiler & Co. (1981) 122 Cal.App.3d 834, 843; City of San Diego v. San Diegans for Open Government (2016) 3 Cal.App.5th 568, 577.) A corporation that lacks the capacity to sue cannot file an answer. (City of San Diego, 3 Cal.App.5th at 577–578.)

Further, the striking of an answer leads inexorably to the entry of default. (Code Civ. Proc. § 585, subds. (a), (b) (stating that the clerk “shall enter the default of the defendant” who fails to respond to a duly served complaint).) Because the Court has stricken Defendant’s answer, Defendant is subject to an entry of default against it. Accordingly, the Court enters default against Defendant.

## CONCLUSION

Based on the foregoing, the Court GRANTS Plaintiff’s motion to strike Defendant’s answer and enters default against Defendant. Plaintiff is ordered to submit a default package within 30 days of this Order. The Court sets a Status Conference re Default Judgment on October 16, 2026 at 8:30 a.m.

IT IS SO ORDERED.

DATED: August 18, 2026 \_\_\_\_\_

Edward B. Moreton, Jr.

Judge of the Superior Court